IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH BENCH

COURT NO.1

(*through hybrid mode*)

ITEM NO.3

CA(CAA) No. 59/Chd/Hry/2023

(1st Motion)

IN THE MATTER OF:-

Hitachi Astemo Chennai Pvt. Ltd. ...Transferor Company

And

Hitachi Astemo Gurugram Powertrain Systems Pvt. Ltd. …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 22.12.2023

CORAM:

SH. L. N. GUPTA
MEMBER (TECHNICAL)

SH. HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

PRESENT:

For the Applicant Companies : Mr. Abhishek Nahta, PCA and Ms. Shruti Priya Sharma, Advocate

ORDER

The present application has been filed under Sections 230-232 of Companies Act, 2013, for merger of Applicant-Company Nos.1 to 4 with Applicant-Company No.5 seeking dispensation from convening separate meetings of all the Creditors and unsecured creditors. Heard. Order reserved.

In the meantime, learned counsel for the Applicant is directed to file an undertaking that all the Income Tax Department liabilities will be owned by the Transferee Company.

Sd/-
(L.N. GUPTA)
MEMBER (TECHNICAL)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

December 22, 2023
PDP